

# FREE MOBILE data breach action

[Association], a certified consumer association, seeks **€[ to be set ]** to fund a French collective damages action (action de groupe) against FREE MOBILE on behalf of 24,633,469 victims (counted as contracts by the CNIL).

Source decision: CNIL Délibération SAN-2026-001 du 8 janvier 2026

Legal basis: GDPR art. 5-1-e, GDPR art. 32, GDPR art. 34

Status: appeal status not stated in the decision

DRAFT FOR LEGAL REVIEW · generated from the CNIL decision · every quote is checked word for word against the decision · values in [brackets] are to be provided

## Type of harm

### IS THE HARM QUANTIFIED?

☐ Quantified ☐ Quantifiable ☒ To be proven

### NATURE

☒ Financial ☒ Non-material ☐ Overcharge ☐ Loss of chance

The decision recognises a risk of financial harm (e.g., fraudulent payments using exposed IBANs) and non-material harm (e.g., distress, fear of identity theft, phishing attempts) for the affected individuals due to the data breach.

« la formation restreinte considère que l'accès non autorisé ou la divulgation des données traitées par la société est de nature à créer un préjudice moral et matériel pour les personnes concernées. » (p. 11) ✓ **verbatim**

## Victims

NUMBER CNIL decision

**24,633,469**

contracts

### IDENTIFIABLE?

☒ Yes ☐ Partly ☐ No

« l'attaquant a pu prendre connaissance, des données concernant 24 633 469 contrats » (p. 3) ✓ **verbatim**

### CATEGORY

☒ Consumers ☐ Businesses ☐ Retail investors ☐ Employees

☐ Other

**Proof of class membership:** the breach notification email sent between 24 and 29 October 2024

Subgroups: customers whose IBAN was exposed (convergent customers); customers whose identity, contact, and contractual data were exposed

« a informé les personnes concernées de la survenance de la violation de données, par courriel, de manière échelonnée entre le 24 et le 29 octobre 2024 » (p. 2) ✓ **verbatim · repaired by code, check support**

## Defendant

### NATURE

☒ Private company ☐ Listed group ☐ Public body

☐ Association or union

### SOLVENCY **Computed**

☐ Low ☐ Medium ☒ Strong

**4.6%** = exposure €147.8M ÷ revenue €3.2bn

Strong < 10% · medium 10–50% · low > 50% (exposure = base scenario)

**Indicators:** revenue €3.2bn (Free Mobile, 2024, [source](#)); group ILIAD €10.0bn (2024, decision), insurance [ ], competent court civil **Assumption**

« En 2024, le chiffre d'affaires de la société ILIAD était de 10,024 milliards d'euros pour un résultat net de 367 millions d'euros. » (p. 2) ✓ **verbatim**

## Value of the claim

Total = victims who opt in × compensation per victim **Computed**

### CATEGORY OF HARM (OPT-IN TABLE)

**Violation de données par défaut de sécurité, victimes identifiées**

« a informé les personnes concernées de la survenance de la violation de données, par courriel, » (p. 2) ✓ **verbatim · repaired by code, check support**

| Scenario   | Opt-ins   | € / victim | Total          |
|------------|-----------|------------|----------------|
| Low (1.4%) | 344,869   | €150       | <b>€51.7M</b>  |
| Base (4%)  | 985,339   | €150       | <b>€147.8M</b> |
| High (15%) | 3,695,020 | €150       | <b>€554.3M</b> |

**Also supported by the decision:** Violation de données sensibles (santé, banque) → €147.8M / **€332.6M** / €591.2M; Défaut d'information, conservation excessive, défaut de minimisation, inexactitude → €849,900 / **€51.7M** / €103.5M. *The most conservative data-breach row is used.*

### EXPECTED OPT-IN

**6.8%**

± 2.95 pts · past cases in this category

### FUNDER'S SHARE

**30%**

€44.3M at base scenario

*Opt-in rates from the legal team's table of past cases; €150 per victim; each of the contracts counted by the CNIL is treated as one person. Benchmarks: minimum claim of €2–4M in France; investment of about 1/10 of claim value (European Commission study, 2025).*

## Timeline

Expected duration: [ ] years · Limitation period ends: [date]

### Facts

Sept.–Oct. 2024

### Source decision

8 Jan. 2026

### Filing

[target date]

### Judgment on liability

[estimate]

### Victims opt in

[period]

### Compensation paid

[estimate]

« Celle-ci a duré du 28 septembre au 22 octobre 2024. » (p. 2) ✓ **verbatim**

### FUNDING FRAMEWORK · ART. 16, FRENCH LAW OF 30 APRIL 2025

- ☐ No funder influence over the conduct of the action
- ☐ Funding publicly disclosed
- ☐ Written conflict-of-interest policy
- ☐ Funder has no ties to the defendant

*Ticked only by the association.*

### THE ASSOCIATION

[Name], certified since [date]

Statutory purpose: [link to the action]

Counsel: [law firm]

Contact: [name, role, email]

# Summary of the decision

Délibération SAN-2026-001 du 8 janvier 2026. Every fact cites the paragraph (§) of the decision; each citation was checked against the decision text by code (△ = could not be verified).

## 0. Identification

The decision is **SAN-2026-001** of **8 January 2026** by the *formation restreinte* of the **CNIL** (Commission Nationale de l'Informatique et des Libertés) [header](#). It is a **penalty decision** imposing a fine, an injunction with a periodic penalty (*astreinte*), and publication [operative part](#). The organisation is **Free Mobile**, a mobile operator owned by the **Iliad group**; its name is **not redacted § 1**. The decision is **public with redactions** for personal data and legally protected secrets [header](#). Appeal is possible; deadline **to be checked by the tool** [operative part](#).

One-sentence summary: the CNIL fines **Free Mobile €27,000,000** for breaching **GDPR Articles 5-1-e) (excessive retention), 32 (security) and 34 (notification to data subjects)** after a **data breach affecting 24,633,469 contracts** [operative part](#).

## 1. Facts

### Who

The sanctioned organisation is **Free Mobile**, a **mobile operator** belonging to the **Iliad group**; Iliad is the parent company and holds **100 %** of Free Mobile [§ 1](#). The **Iliad group** had **more than 50.2 million subscribers** in 2024; **Free Mobile** alone had **about 15.5 million mobile subscribers** as of **31 December 2024 § 1**. Iliad's **2024 revenue** was **€10.024 billion** with a **net profit of €367 million § 1**. The case originated from a **data breach notification** by Free Mobile [§ 3](#). The **CNIL had received 2,614 complaints** from affected individuals by the date the sanction report was notified [§ 4](#).

### What

The processing at issue is the **management of subscriber contracts** via the **MOBO customer management tool § 19**. The **data concerned** include **identity data, contact data, contractual data, and, for "convergent" customers (mobile and fixed-line), IBANs § 20 △**. The **attacker accessed data on 24,633,469 contracts**, of which **19,460,891 were mobile (Free Mobile) and 5,172,577 were fixed-line (Free): "l'attaquant a pu prendre connaissance des données concernant 24 633 469 contrats" § 21**. The breach lasted from **28 September to 22 October 2024 § 2**.

The *formation restreinte* holds that the disclosure **"est de nature à créer un préjudice moral et matériel"** [is likely to cause non-material and material harm], citing **identity theft, phishing and fraudulent payments with a stolen IBAN § 82**. However, the CNIL admits it is **"pas possible de déterminer avec certitude"** [not possible to determine with certainty] that the frauds reported by complainants come from this breach [§ 84](#). The decision does not state any earlier penalties or formal notices against Free Mobile.

### Where

The territory is **France**. The CNIL acted as the **lead authority**; no one-stop-shop cooperation is mentioned [header △](#).

### When

The **breach period** was **28 September to 22 October 2024 § 2**. Free Mobile **discovered the incident on 21 October 2024** via an alert from the attacker [§ 2](#). It **notified the CNIL on 23 October 2024** and **completed the notification on 5 November 2024 § 3**. It **informed data subjects by email between 24 and 29 October 2024 § 3**. The **on-site inspection** took place on **8 November 2024 § 6**. The **rapporteur was appointed on 17 February 2025 § 7**. The **sanction report was notified on 25 July 2025 § 9**. The **hearing before the restricted committee** was held on **15 December 2025 § 15**. The **decision was adopted on 8 January 2026** [header △](#).

## 2. Procedure

The case began with Free Mobile's **data breach notification** to the CNIL on **23 October 2024 § 3**. The **CNIL President ordered an on-site inspection on 6 November 2024 § 5 △**. The **inspection took place on 8 November 2024** at Free Mobile and Free's premises [§ 6](#). The **CNIL President decided on 24 July 2025 to split the sanction procedure** initially targeting both Free Mobile and Free into two separate procedures [§ 8](#). The **rapporteur notified the sanction report to Free Mobile on 25 July 2025**, alleging breaches of **Articles 5-1-e), 32 and 34 GDPR** and proposing a fine, an injunction with a periodic penalty, and publication [§ 9](#). Free Mobile **submitted written observations on 15 September 2025 and 17 November 2025 § 10, 12 △**. The **rapporteur replied on 15 October 2025 § 11 △**. The **instruction was closed on 18 November 2025 § 13**. Free Mobile **requested a postponement of the hearing**, which was granted; the hearing was rescheduled to **15 December 2025 § 15**. Free Mobile **requested a closed session (huis-clos)**, which was **refused on 3 December 2025 § 16**. **Oral observations** were presented during the hearing [§ 17](#). Free Mobile **submitted a note in deliberation on 19 December 2025 § 17 △**.

The decision **does not mention any parallel criminal or other administrative proceedings**.

## 3. Legal basis

The *formation restreinte* establishes **three breaches**:

- **Article 5-1-e) GDPR** (excessive retention of personal data) [§ 52](#).
- **Article 32 GDPR** (failure to implement appropriate technical and organisational security measures) [§ 151](#).
- **Article 34 GDPR** (failure to communicate the personal data breach to data subjects in a complete manner) [§ 199](#).

The decision **does not reject any breach** as unfounded.

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## 4. Arguments

The company argues that **the rapporteur wrongly attributes the same breaches to both Free Mobile and Free** without considering their respective responsibilities § 24. The *formation restreinte* holds that **each company is responsible for its own processing** and that the **procedures were split**, so the argument is **rejected** § 26.

The company argues that **Article 32 GDPR is an obligation of means, not result**, and that the **occurrence of a data breach alone does not establish a breach** § 56. The *formation restreinte* **accepts this legal qualification** but holds that **the breach is established because the security measures were insufficient** and facilitated the attack § 58.

The company argues that **the principle of legality (*légalité des délits et des peines*) is violated** because Article 32 GDPR and CNIL/ANSSI recommendations are not prescriptive § 57. The *formation restreinte* **rejects this argument**, citing **CJEU case law** and **French administrative law**, and holds that **recommendations clarify obligations** and that the **elements of the breach are defined precisely** § 65.

The company argues that **the treatment does not present a high risk** because it does not process **special-category data (Article 9 GDPR)** § 74. The *formation restreinte* holds that **the risk is high** due to the **massive volume of data (24,633,469 contracts)**, the **sensitive nature of certain data (IBANs)**, and the **potential for identity theft, phishing, and fraudulent payments** § 73.

The company argues that **IBAN alone cannot enable fraudulent direct debits** and that **banks have safeguards** § 75. The *formation restreinte* holds that **IBANs can be used for fraudulent payments** on websites that validate SEPA mandates via a simple checkbox, and that **the risk of phishing and identity theft is high** § 82.

The company argues that **it could not anticipate all future forms of exploitation** of the breach and that **its notification email was sufficient** § 174. The *formation restreinte* holds that **the email lacked essential information** (description of remediation measures, probable consequences, and measures data subjects should take) and that **a two-tier communication (email + helpline) does not replace the obligation to include essential information in the first-tier notification** § 188-199 △.

The company argues that **the fine is disproportionate** and that **publication would harm its security** § 239. The *formation restreinte* **rejects these arguments**, citing the **gravity of the breaches**, the **number of affected individuals**, and the **need for deterrence** § 240.

The company argues that **the principle *non bis in idem* is violated** because the same facts are sanctioned twice (for Free Mobile and Free) § 209. The *formation restreinte* holds that **the procedures are distinct**, **the companies are separate legal entities**, and **the breaches are different**, so the principle is **not violated** § 213.

**Remaining weak points.** The CNIL **admits uncertainty** about whether the **excessive retention (Article 5-1-e)) aggravated the security breach (Article 32)**: "les éléments du dossier portés à sa connaissance ne lui permettent pas de se prononcer sur le point de savoir si l'absence d'implémentation de la politique de durée de conservation des données a ou non permis à l'attaquant d'accéder à une profondeur historique de données plus importante," [the elements of the file do not allow it to determine whether the failure to implement the data retention policy allowed the attacker to access a greater historical depth of data] § 214. The CNIL also **cannot confirm with certainty** that the frauds reported by complainants stem from this breach § 84.

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## 5. Decision

The *formation restreinte* imposes a **fine of €27,000,000** for the breaches of **Articles 5-1-e), 32 and 34 GDPR operative part** △. The fine is calculated based on the **Iliad group's 2024 revenue (€10.024 billion)**, as Free Mobile and Iliad form a **single economic unit** under EU competition law § 244. The **criteria under Article 83 GDPR** considered include:

- **Gravity:** the breaches affected **24,633,469 contracts** and **15 million former subscribers' data were retained excessively**; the **security failures facilitated the breach**; the **notification to data subjects was incomplete** § 222.
- **Negligence:** Free Mobile **failed to implement retention policies and security measures** despite having the **resources to do so** § 228.
- **Number of affected individuals:** **24,633,469 contracts** were affected by the breach; **only 58,239 individuals called the helpline** § 224.
- **Mitigating factors:** Free Mobile **took remediation measures during the procedure**, but **not all were completed by the hearing date** § 233.

The *formation restreinte* **does not impose an injunction for Article 34 GDPR** but **orders Free Mobile to comply with Articles 5-1-e) and 32 GDPR** within:

- **6 months for Article 5-1-e):** implement the **data retention policy** by **purging data from contracts terminated for over 10 years** and **retaining only data strictly necessary for accounting purposes for 10 years** **operative part, 2nd indent**.
- **3 months for Article 32 GDPR:** implement **appropriate technical and organisational security measures** **operative part, 2nd indent**.

The injunction is **assorted with a periodic penalty (*astreinte*) of €50,000 per day of delay**, payable after the **6-month and 3-month deadlines** respectively **operative part, 3rd indent**.

The decision **will be published on the CNIL's website and Légifrance** and **will be anonymised after 2 years** **operative part, 4th indent** △.

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## 6. Appeal

The decision **can be appealed before the Conseil d'État** **operative part**. The **deadline is to be checked by the tool**. The decision **does not mention whether an appeal has been lodged**.